


ALLIED WORLD SURPLUS LINES INSURANCE COMPANY

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USA

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To:	Kevin Herr Marsh & McLennan Agency, LLC 1000 Corporate Drive, Suite 400 Ft. Lauderdale, FL 33334	Date: 04/17/2025 kherr@seitlin.com
From:	Raymond Darche	Account # 3530500
Re:	Health Choice Community Partners, LLC - Healthcare Forcefield Package	

BINDER VIA: EMAIL

Insured:	Health Choice Community Partners, LLC		
Address:	9064 Northwest 13th Terrace Miami, FL 33172		
Policy Number:	0313-8156		
Policy Period:	From: 05/01/2025	To: 05/01/2026	

Coverage Sections and Premium		
Liability Coverage Section		Premium
☒	Directors and Officers Liability Coverage Section	\$10,000
☐	Employment Practices Liability Coverage Section	N/A
☐	Fiduciary Liability Coverage Section	N/A
☐	Employed Lawyers Liability Coverage Section	N/A
☐	Crime Coverage Section	N/A
☐	Kidnap and Ransom/Extortion Coverage Section	N/A
Total Policy Premium		\$10,000

Limit of Liability and Retention For Each Coverage Section (Other than the Crime and Kidnap and Ransom/Extortion Coverage Sections)			
Coverage Section	Separate Limit of Liability	Shared Limit of Liability	Retention*
Directors and Officers Liability Coverage Section	\$1,000,000		All Claims: \$25,000

* With respect to all Coverage Sections listed above, no Retention amount is applicable to Non-Indemnifiable Loss.

Aggregate Limit of Liability
\$1,000,000

Other Coverage Limits and Sublimits	
Coverage	Limit of Liability
Dedicated Excess Coverage for Insured Persons (D&O)	N/A
Sublimit of Liability for	

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Anti-Trust Claims Coverage	\$1,000,000
Regulatory Claims Coverage (D&O)	\$100,000
HIPAA Fines and Penalties Coverage (D&O)	\$25,000
Crisis Event Coverage/Response Costs (D&O)	\$5,000
EMTALA Coverage (D&O)	\$25,000
IRS Actions, Defense Only Coverage (D&O)	\$25,000
Excess Benefits Transactions Excise Tax Coverage (D&O)	\$25,000
FLSA Defense Only Coverage (EPL)	N/A
Retention for	
Each and every Claim (not applicable to Insuring Agreement A, D, E, G and H) (D&O)	\$25,000
Each and every Antitrust Claim under Insuring Agreement D (D&O)	\$75,000
Each and every Regulatory Claim under Insuring Agreement E (D&O)	\$100,000
Punitive Damages Coverage Options for D&O and EPL Coverage Sections	
☐ D&O Punitive Damages Sublimit of Liability	
☐ EPL Punitive Damages Sublimit of Liability	
☐ Shared Punitive Damages Sublimit of Liability for D&O and EPL	
☒ No Punitive Damages	
Coverage Dates	
Coverage Section	Date
Directors and Officers Liability Coverage Section	Pending or Prior Date: 05/01/2023

Discovery Period	
1 Year	150%

Insurer	Allied World Surplus Lines Insurance Company
Policy Form	
PP 00305 00 (06/14) - Healthcare Organization Management Liability Package General Terms and Conditions	
PP 00308 00 (06/14) - Healthcare Organization Management Liability Package Directors and Officers Liability Coverage Section	
Premium Due Date	30 Days from effective date of policy
Commission	12.5%

Endorsements:
1. PN 9001 (01/15) - Terrorism Policyholder Notice 2. PP 00068 00 (01/10) - Major Security Holder Claims Exclusion (5%) 3. PP 00331 00 (12/10) - Non-Pyramiding of Limits - Policies Issued to Same Insured 4. PP 00342 00 (12/10) - Antitrust Coverage Subject to Co-Insurance (20%) 5. PP 00356 00 (12/10) - Pre-Approved Crisis Management Firm(s) 6. PP 00382 00 (12/10) - Non-Pyramiding of Limits Other Specific Policy 7. PP 00386 00 (12/10) - Securities Exclusion - Full 8. PP 00396 00 (05/12) - Allocation of Loss 9. PP 00422 00 (05/13) - Duty to Defend Coverage w Partial Hammer (80/20) 10. PP 00435 00 (05/13) - Amend Retention Provision 11. PP 00436 00 (05/13) - Newly Acquired Entities Asset/Revenue Threshold (10%) 12. PP 00449 00 (12/14) - Non-Pyramiding of Anti-Trust And Other Claims (DNA) 13. PP 00450 00 (12/14) - Amend Discovery Period Provision 14. PP 00469 00 (06/18) - Amend Definition of Employee (Directors & Officers Liability) 15. PP 00552 00 (06/18) - TCPA Exclusion

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16. PP 00673 00 (04/21) - Amend HIPAA Coverage (Revised 2021)
17. PP 00703 00 (04/21) - Amend Loss Definition (Restitution/Disgorgement Excluded)
18. PP 00704 00 (04/21) - Amend Regulatory Wrongful Act (CARES Act)
19. PP 00878 00 (05/23) - Biometric Identifiers Biometric Information And Data Privacy Exclusion - Employee Privacy Wrongful Act Exclusion
20. SVC 00010 00 (04/16)(AWSLIC) - Service Of Suit

Subjectivities

This binder is subject to the insurer's satisfactory receipt, review and acceptance of the following items within ten (10) days of the policy inception date unless a different due date is specified herein. Failure to do so may result in the voidance of any binder or coverage :

1. Surplus Lines Policy Information Form

TERMS AND CONDITIONS

This binder is strictly conditioned upon no material change in the risk, including a submission being made to the insurer of a claim or circumstance that might give rise to a claim, between the date of this binder and the policy inception date. In the event of such a change in risk, the insurer may, in its sole discretion, amend or withdraw this binder.

All other terms and conditions as per our Policy Form and any applicable endorsements referenced herein.

This binder does not include any amount with respect to Surplus Lines Taxes and/or Stamping Fees. See "Surplus Lines Disclosure" if applicable.

SURPLUS LINES DISCLOSURE

This binder is being offered on a surplus lines basis. As the producing broker, it will be your responsibility to furnish the Insurer with all necessary information regarding the Surplus Lines broker who will be responsible for complying with state surplus lines laws, including arranging for the payment of the applicable state tax and/or stamping fee should a policy be issued. In order to facilitate the timely collection of this information on behalf of the Insurer, you will be required to provide and affirm the contact name, address, license number, for such Surplus Lines broker prior to binding any transaction.

Thank you for choosing Allied World Surplus Lines Insurance Company a member company of Allied World Assurance Company Holdings, AG.

This Binder is authorized by Gregg Glick



**POLICYHOLDER DISCLOSURE STATEMENT
UNDER THE TERRORISM RISK INSURANCE ACT**

The Insured is hereby notified that under the federal Terrorism Risk Insurance Act, as amended, (the "Act"), the Insured has a right to purchase insurance coverage for losses arising out of an Act of Terrorism, as defined in Section 102(1) of the Act: The term "act of terrorism" means any act that is certified by the Secretary of the Treasury in consultation with the Secretary of Homeland Security and the Attorney General of the United States to be an act of terrorism; to be a violent act or an act that is dangerous to human life, property, or infrastructure; to have resulted in damage within the United States, or outside of the United States in case of certain air carriers or vessels or the premises of a United States mission; and to have been committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion. The Insured should read the Act for a complete description of its coverage. The decision to certify or not to certify an event as an Act of Terrorism covered by this law is final and not subject to review.

The Insured should know that where coverage is provided by this policy for losses caused by a Certified Act of Terrorism may be partially reimbursed by the United States Government under a formula established by federal law. However, the insured's policy may contain other exclusions that might affect coverage, such as an exclusion for nuclear events. Under the formula, the United States generally reimburses 85% through 2015; 84% beginning on January 1, 2016; 83% beginning on January 1, 2017; 82% beginning on January 1, 2018; 81% beginning on January 1, 2019; and 80% beginning on January 1, 2020, of covered terrorism losses exceeding the statutorily established deductible that must be met by the Insurer, and which deductible is based on a percentage of the Insurer's direct earned premiums for the year preceding the Act of Terrorism

Be advised that the Terrorism Risk Insurance Act, as amended, contains a \$100 billion cap on all losses resulting from Certified Acts of Terrorism. If aggregate insured losses attributable to Certified Acts of Terrorism exceed \$100 billion in a calendar year the United States Government shall not make any payment for any portion of the amount of such loss that exceeds \$100 billion. If aggregate insured losses attributable to Acts of Terrorism exceed \$100 billion in a Program Year and the Insurer has met its deductible under the Act, the Insurer shall not be liable for payment of any portion of the losses that exceeds \$100 billion, and in such case, insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury.

Coverage for "insured losses" as defined in the Act is subject to the coverage terms, conditions, amounts and limits in this policy applicable to losses arising from events other than Acts of Terrorism.

Please see the options available to the Insured below.

- If you, the Insured, **elect to purchase coverage** in accordance with the Act, there will be \$0.00 additional premium due and **no further action or response is needed by you.**
- If you, the Insured, reject coverage in accordance with the Act, you must check below and sign and return this form to the Insurer.

☐ I HEREBY REJECT THIS COVERAGE.

Health Choice Community Partners, LLC

Signature of Insured

0313-8156

Print/Title

Date



Risk Management
AWAC Services Company
Member Company of **Allied World**
V 860 284 1305
F 860 284 1317
E riskmanagement@awacservices.com

Re: Risk Management Services-Strategic Response®, D&O Education

Thank you for choosing Allied World as your Directors and Officers (D&O) liability carrier. Allied World is also committed to supporting you in your proactive risk management efforts. Allied World's risk management program is offered to you through AWAC Services Company, as a value-added service at no additional charge.

Strategic Response®

Allied World provides you with access to Strategic Response®, a 24/7 crisis hotline. In the event of a crisis, Strategic Response will work with executives in your organization and refer them to crisis management resources for advice and guidance in managing the situation and mitigating the damage. The enclosed sheet provides further information regarding Strategic Response® services. It includes a card which you may cut out that provides the toll-free number to call in the event of a crisis.

In the event of child abduction, we also provide you with access to **red24™**. red24 is a leading global security company offering global risk management to employees and companies. Their highly trained security professionals are available 24/7 to provide immediate advice and response support.

The enclosed sheet offers further information regarding Strategic Response services. It includes a card which you may cut out that provides the toll-free number to call in the event of a crisis.

D&O Education

At your request, we will provide you with copies of *Answering the CALL: Understanding the Duties, Risks, and Rewards of Corporate Governance*. In collaboration with the Women Business Leaders of the U.S. Health Care Industry Foundation, we created this reference manual for corporate directors and officers. It outlines areas of personal liability, best practices for corporate governance, and provides an in-depth look at D&O insurance. If you wish to obtain copies for your Board of Directors, please contact Risk Management at 860-284-1305 or riskmanagement@awacservices.com with your contact information and the number of copies needed.

We look forward to working with you in support of your organization's risk management goals. Additionally, please contact our Resource Coordinators at 860-284-1305 or email riskmanagement@awacservices.com to inquire about Risk Management Resources.